CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FIRST SECTION

DECISION

AS TO THE ADMISSIBILITY OF

Applications nos. 27238/03 and 35078/04
by Zainap Khadushovna DZHAMBEKOVA and Others
against Russia

The European Court of Human Rights (First Section), sitting on 13 March 2008 as a Chamber composed of:

Christos Rozakis, *President,*
Anatoly Kovler,
Elisabeth Steiner,
Dean Spielmann,
Sverre Erik Jebens,
Giorgio Malinverni,
George Nicolaou, *judges,*

and Søren Nielsen, *Section Registrar*,

Having regard to the above applications lodged on 10 July 2003 and on 19 August 2004,

Having regard to the decision to grant priority to the above applications under Rule 41 of the Rules of Court,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicants,

Having deliberated, decides as follows:

THE FACTS

The applicants in application no. 27238/03 are:

1. Ms Zaynap Khadushovna Dzhambekova, born in 1959;
2. Mr Adlan Lukayevich Dzhambekov, born in 1953;
3. Ms Markha Adlanovna Dzhambekova, born in 1998;

4. Mr Islam Adlanovich Dzhambekov, born in 1990;
5. Ms Aminat Dodayevna Ependiyeva, born in 1949;
6. Mr Ali Magomedovich Soltymuradov, born in 1992;
7. Ms Toita Dodayevna Soltymuradova, born in 1954;
8. Ms Aysha Magomedovna Soltymuradova, born in 1997;
9. Ms Madina Magomedovna Soltymuradova, born in 1990;
10. Mr Uvays Soltymuradovich Soltymuradov, born in 1930;
11. Ms Zulpa Uvaysovna Soltymuradova, born in 1958;
12. Ms Umisat Dodyevna Nakayeva, born in 1965;
13. Ms Ayza Shaidovna Tokayeva, born in 1966;
14. Ms Zara Baidovna Tatariyeva, born in 1940;
15. Ms Kheda Rezvanovna Tatariyeva, born in 2000;
16. Ms Zura Shamsudinovna Tatariyeva, born in 1967.
17. Ms Marina Dukvakhayevna Islamova, born in 1980.

The applicants in application no. 35078/04 are:

18. Vakha Salmanovich Visaitov, born in 1944;
19. Zulay Sayd-Khasanovna Magomadova, born 1949.

They are Russian nationals and live in the Urus-Martan district, Chechnya. They were represented before the Court by lawyers of the Stichting Russian Justice Initiative (SRJI), an NGO based in the Netherlands with a representative office in Russia. The respondent Government were represented by Mr P. Laptev, Representative of the Russian Federation at the European Court of Human Rights.

A. The circumstances of the case

The facts of the case, as submitted by the parties, may be summarised as follows.

1. Detention of the applicants' relatives

The applicants belong to four families, four of whose relatives were detained in three separate episodes in 2001 and 2002 in the town of Urus-Martan or in villages in the Urus-Martan district. The four men disappeared following their detention, and the families have been conducting the search for them together.

(a) Apprehension of Imran Dzhambekov

The first four applicants are relatives of Imran Dzhambekov, born in 1979. The first two applicants are his mother and father, and the third and fourth applicants are his younger sister and brother. The Dzhambekov family live in their own house at 209 Sovetskaya Street in the village of Goyty in the Urus-Martan district. In March 2002 Imran Dzhambekov was a second-year student at the Grozny Oil Institute, in the faculty of

Construction Management and Economics. The local police office in Urus-Martan certified that he had no problems with the law and was known to his neighbours and co-students as a responsible member of the community. In May 2003, at the first applicant's request, the Goyty village policeman certified that there was no reason to suspect Imran Dzhambekov of involvement with illegal armed groups.

On the evening of 19 March 2002 the first four applicants and Imran Dzhambekov were at home. At about midnight the first applicant heard someone trying to open the entrance door. She walked to the door, which opened, and a man wearing camouflage and a mask entered and pointed a machine gun at her. He turned on the light, and then about twelve more servicemen entered the house. They were all armed and masked. They spoke Russian without any accent and the first applicant noticed blue eyes and light features through the openings in the masks. The first applicant asked them what they wanted but they told her to keep silent. They did not explain anything to the applicants and did not produce any papers.

The servicemen asked the first applicant to indicate who was in which room of the house. The first applicant pointed to the room where her husband, the second applicant, was sleeping and to the room where her elder son Imran Dzhambekov was sleeping. One serviceman went into the second applicant's room, and about ten of them went into Imran's room. The first applicant managed to get past the servicemen into her son's room and saw him lying on the floor face down, his hands tied behind his back. Her son was wearing a short-sleeved T-shirt and shorts in which he had been sleeping. The military ordered him to be silent and asked the first applicant her son's name and date of birth. Then they ordered her to fetch his passport and other documents, which she did.

In the meantime the first applicant's two minor children, the third and the fourth applicants, started to cry and one of the soldiers took the children and the first applicant and escorted them into the second applicant's room. Then they closed the door and pushed some furniture against it to block it from the outside. The second applicant received several blows from the military in the face and in the stomach, and for some time lay on the floor in pain. When the applicants managed to open the door after about ten minutes, the servicemen had already left and taken Imran Dzhambekov with them.

The first applicant ran along the street crying out her son's name. She saw a group of servicemen walking towards two armoured personnel carriers (APCs) and one UAZ vehicle stationed on the crossroads of Sovetskaya Street and Titova Street. The second applicant in the meanwhile grabbed a metal rod and started to knock on a gas pipe pillar in order to wake up the neighbours.

By the time the first applicant reached the crossroads, the military had mounted the vehicles and left along Titova Street. The first applicant tried to catch up with them but they turned into Pushkina Street.

In the meantime, the second applicant took his car and also tried to catch up with the military vehicles. At some point he picked up his wife, the first applicant, in the street and together they continued along the tracks left by the APCs until they reached the main road, from where there were two directions out of the village – to the north towards Grozny, or to the south towards Urus-Martan. Both exits were controlled by Russian military roadblocks.

The applicants first went to the roadblock at the exit towards Grozny. They personally knew a military serviceman who served there, Sergey from St. Petersburg, and the first applicant walked up to the roadblock and called him by name. When he came out she told him that some military in APCs had detained her son, and Sergey told her that there had been no traffic into the village that night from their side, and that they should go to the roadblock towards Urus-Martan.

The applicants then went to the house of the local policeman and asked him to go with them, but he refused. He told them to go and wait for the military vehicles at the roadblock until 6 a.m. because nobody would be allowed to travel during the curfew. Then the applicants went to the house of the head of the village administration, but did not find him.

After that the applicants went to the roadblock leading towards Urus-Martan. There, at about 1.30 a.m., they saw two APCs and a UAZ vehicle heading towards Urus-Martan. The applicants clearly noted the identification number of one APC as 237, and a long dent and strokes of white paint on the back of the UAZ. Later the neighbours told them that they had noted the APC identification numbers as 237 and 246, and the UAZ number plate as “378-t”.

The first and second applicants returned home and decided to continue the search in the morning, after the end of the curfew. In the street in front of their house they found Imran Dzhambekov’s shoe and socks. They realised that he had been taken away in his shorts and T-shirt and barefoot, despite the cold weather.

In addition to their own detailed statements of facts, the applicants submitted witness statements from their neighbours about the events of the night of 19-20 March 2002, which corroborated their submissions. One witness testified that she had seen bruises on the second applicant’s face from the blow he had received that night. The neighbours testified that they had heard the first applicant crying out her son’s name and the knocking by the second applicant, and had seen the military in two APCs and a man in underwear whom they had put into an APC.

The applicants also submitted a hand-drawn map of Goyty indicating the places to which they referred.

The applicants have had no news of their son and brother Imran Dzhambekov since that night.

The Government in their observations did not dispute most of the facts as presented by the applicants. They stated that it had been established that on 19 March 2002 at about 12 a.m. unidentified men wearing camouflage uniforms and armed with automatic weapons had entered the applicants' house at 209 Sovetsakaya Street in Goyty and taken away Imran Dzhambekov.

(b) Apprehension of Magomed Soltymuradov

Applicants five to thirteen are relatives of Magomed Dodiyevich Soltymuradov, born in 1969. The fifth, seventh and twelfth applicants are his sisters; the sixth, eighth and ninth applicants are his son and daughters; the tenth applicant is his uncle and the eleventh applicant is his cousin. The thirteenth applicant is Magomed Soltymuradov's wife. The applicants live in two private houses located in Urus-Martan at nos. 5 and 7 Polevaya Street. Magomed Soltymuradov, his wife and three children lived in house no. 5, while his uncle and his cousin, the tenth and eleventh applicants, live in no. 7. In addition, there is another building in the same household where the fifth applicant lives.

Magomed Soltymuradov is an economist by training. Before the hostilities started he had worked in a bank. Between November 1999 and December 2001 Magomed Soltymuradov lived as an internally displaced person with his wife and three children in the Volgograd Region. Since his return to Urus-Martan he had been unemployed, while his wife, the thirteenth applicant, worked as a medical worker in a hospital. The applicants submitted that Magomed Soltymuradov had suffered from an ulcer since childhood and required constant medical treatment.

On the night of 10-11 January 2002 the thirteenth applicant was in the hospital where she was working the night shift. The sixth, eighth and ninth applicants were at home with their father, Magomed Soltymuradov. They slept through the night, and in the morning at 7 a.m. when the ninth applicant woke up and was getting ready for school, she found out that her father was not at home and that the front door was broken.

The eleventh applicant testified that at about 2 a.m. on 11 January 2002 she had heard some noise at the front door of her house. She walked to the door and turned on the lights. She asked in Russian who it was, and was told in Russian to open the door for a document check. Once she opened the door, four armed men in camouflage uniforms and wearing masks entered the house. They told her to produce her passport and searched her room, including the bed and the wardrobe.

They then proceeded to search the room of the tenth applicant, her father. After about twenty minutes they left. The tenth and eleventh applicant heard a car leaving from the crossroads of Polevaya Street and Chekhova Street, from the direction of the house of Magomed Soltymuradov.

The fifth applicant submitted that in the middle of the night she had heard some noise in her house but had not understood what was going on. She looked out into the courtyard, but it was dark and she could not see anything. She then fell asleep.

On 11 January 2002 at about 7 a.m. the ninth applicant, Madina Soltymuradova, the daughter of Magomed Soltymuradov, alerted the tenth and eleventh applicants to her father's absence. The relatives inspected the fresh snow in the courtyard, where they could clearly see traces of military boots with the marking "USSR". There were also imprints of sports shoes. The applicants estimated that there must have been about twenty persons in the courtyard. The imprints led to houses nos. 5 and 7, and inside the houses. In both buildings the front doors were broken. Magomed Soltymuradov's room and bed were in disorder. The applicants also realised that 4,000 roubles (RUR) they had in cash had gone missing.

The applicants submitted a hand-drawn map of the neighbourhood indicating the buildings to which they referred and the traces left by boots.

The applicants have not had any news of Magomed Soltymuradov since 11 January 2002.

The Government in their observations did not dispute the facts as presented by the applicants. They stated that it had been established that on 11 January 2002 at about 3 a.m. unidentified armed men wearing camouflage uniforms and masks and armed with automatic weapons had entered the household at no. 5 Polevaya Street in Urus-Martan and taken away Magomed Soltymuradov, whose whereabouts remained unknown.

(c) Apprehension of Rizvan Tatariyev

Applicants fourteen to seventeen are relatives of Rizvan Shamsudinovich Tatariyev, born in 1977. The fourteenth applicant is his mother, the fifteenth applicant is his daughter, the sixteenth applicant is his sister and the seventeenth applicant is his wife. The applicants live in two private houses joined by a common courtyard, located at 16 Bolnichnaya Street in Gekhi, Urus-Martan district. Six other family members of Arbi T., Rizvan Tatatriyev's brother, live in the same household. Rizvan Tatariyev was a construction worker. In May 2003 the Gekhi village policeman and the head of the village administration certified that there was no reason to suspect Rizvan Tatariyev of involvement with illegal armed groups.

On the night of 22 December 2001 the applicants and other members of their family were at home sleeping. At about 3 a.m. a large group of servicemen forcibly entered the household. There were about twenty men, armed with hand pistols, automatic weapons and truncheons and wearing camouflage uniforms and masks. They were tall and well-built and spoke Russian without any accent. They wore head lamps, so the applicants could not see their faces clearly, but the applicants submitted that they belonged to the special forces.

The applicants were awoken by the soldiers who were already in the house and had spread out in the rooms. They first went to the room of Rizvan Tatariyev's nephew, Ruslan T., who at that time was 21 years old. They put him on the floor and held him there using their feet and truncheons. One of the female relatives fetched his passport at the request of the servicemen, who inspected it and said to another "It's not him."

They then proceeded to the room where the fourteenth applicant and her son Rizvan Tatariyev had been sleeping. Several servicemen threw Rizvan Tatariyev on the floor and started to kick him, then tied his hands behind his back. They inspected his driving licence and said "It's him". They did not ask for his passport. In the meantime the fourteenth applicant tried to get to her son, but the military pushed her away. Then they escorted Rizvan Tatariyev outside through the back door and left one by one. They warned the applicants not to go outside the house or they would shoot.

The applicants submitted that, according to their neighbours' statements, the military had arrived with an APC and two UAZ vehicles which they had left about 80 metres away from the house. When the applicants came out of the house some time after the departure of the armed men, they found the gates open, but the military had already left.

In addition to their own statements of facts and statements of facts by their relatives who lived in the same household, the applicants submitted a hand-drawn map of the area and of the two houses, noting the places to which they referred. In the morning they learnt that on the same night the servicemen had detained and taken away another man in Gekhi, Sharpudi Visaitov.

The applicants have not seen or heard from their relative Rizvan Tatariyev since the night of 21-22 December 2001.

The Government in their observations did not dispute most of the facts as presented by the applicants. They stated that it had been established that on 22 December 2001 at about 4 a.m. unidentified armed men wearing masks had taken Rizvan Tatariyev away from his home, and that his whereabouts remained unknown.

(d) Apprehension of Sharpudi Visaitov

The eighteenth and nineteenth applicants are married. They are the father and mother of Sharpudi Vakhayevich Visaitov, born in 1980. The applicants live with their eight children, their daughter-in-law and two grandchildren in a private house at 20 Nuradilova Street in Gekhi, Urus-Martan district. Their son Sharpudi Visaitov worked as a car mechanic. In May 2003 the Gekhi village policeman and the head of the village administration certified that there was no reason to suspect Sharpudi Visaitov of involvement with illegal armed groups.

On the night of 21 to 22 December 2001 the applicants and their family members were at home sleeping. At about 4 a.m. a large group of men in

camouflage uniforms forcibly entered their house. The servicemen were armed with machine guns and spoke Russian without any accent. Some of them wore masks, while others did not and had typically Slavic features. They were wearing helmets with head lamps. The military did not produce identity papers or any documents to justify their actions and gave no explanations.

The applicants were woken up by the servicemen who were in their room and aimed automatic rifles at them. They told them to be quiet, not to wake up the children and to produce their identity documents for a check. They also asked them if there were any weapons in the house, to which the eighteenth applicant replied in the negative, and how many men there were in the house.

They proceeded to search the rooms, inspecting the passports of the occupants. In the meantime a group of soldiers stayed in the courtyard, keeping aim at the windows.

Then the military ordered four sons of the applicants, including Sharpudi Visaitov, to go into the courtyard. They were not permitted to dress or to put on shoes. After a while Sharpudi's three brothers were released and returned to the house one by one. The servicemen left after about thirty minutes and took Sharpudi Visaitov with them. Before leaving they told the applicants to remain inside the house for twenty minutes because the house was being watched by snipers and they would be shot at if they disobeyed. After the departure of the servicemen the applicants realised that they had taken Sharpudi Visaitov's passport and some family photos.

In the morning of 22 December 2001 the applicants found Sharpudi Visaitov's slippers in the courtyard and saw the imprints of bare feet in the snow, which they concluded were his. They found an opening cut in the metal wire fence around their vegetable patch, through which the servicemen had arrived and departed.

In the morning they discovered that on the same night another person from the village had been detained, Rizvan Tatariyev. The Tatariyevs' house is situated in Bolnichnaya Street, which is parallel to Nuradilova Street, so that the two households border each other's back gardens. The applicants submitted a hand-drawn map of the area and of the house.

The applicants also identified witnesses among neighbours who testified that they had seen a large group of servicemen in the Visaitovs' house on that night at about 4 a.m., as well as an APC and another vehicle stationed in the neighbouring Kirova Street. These statements were attached to their application.

The applicants submitted that two days after the detention of Sharpudi Visaitov an APC and a UAZ vehicle had arrived at their house. A group of military servicemen told them to give up their weapons or they would take away other men, as they had done with Sharpudi. The applicants had no weapons to surrender, and the military searched the house and left without

taking anything. They did not identify themselves or present any papers. The applicants submitted that the vehicles had left in the direction of Urus-Martan.

The Government in their observations did not dispute most of the facts as presented by the applicants. They stated that it had been established that on 22 December 2001 at about 4 a.m. unidentified armed men wearing masks had taken Sharpudi Visaitov away from his home, and that his whereabouts remained unknown.

2. Search and investigations into the "disappearances"

Immediately after the detention of their family members the applicants started to search for them. They coordinated their actions and conducted part of the search together. The search was primarily carried out by the women in the families, either by the mothers or sisters of the detained men. At some point in 2003 the applicants set up a non-governmental organisation called the "Society of War Victims", headed by the first applicant. Part of the search was conducted on behalf of this NGO.

On numerous occasions, both in person and in writing, they applied to the prosecutors at various levels, to the Ministry of the Interior, to the Special Envoy of the Russian President for Rights and Freedoms in the Chechen Republic, to military commanders, the Federal Security Service (FSB), the administrative authorities in Chechnya and to the media and public figures. The applicants also personally visited detention centres, police stations, military bases and prisons in Chechnya as well as further afield in the Northern Caucasus.

Besides personal visits, the applicants addressed numerous letters to the prosecutors and other authorities in which they stated the facts of their relatives' detention and asked for assistance and details on the investigation. The applicants submitted copies of some letters they had written.

The applicants received hardly any substantive information from official bodies about the investigations into the disappearances. On several occasions they were sent copies of letters by means of which their requests had been forwarded to different prosecution services. Below is a summary of the letters retained by the applicants and the replies they received from the authorities, and of other relevant developments.

(a) Search for Imran Dzhambekov

Imran Dzhambekov was detained in the early hours of 20 March 2002. Once the curfew was over at 6 a.m. the first and second applicants, the parents of the detained man, took warm clothes for him and went to Urus-Martan, in the direction taken by the military vehicles that had detained him. They personally visited the Urus-Martan temporary district department of the interior (VOVD) and the military commander's office. They were not

allowed to enter the buildings, but the officers denied that Imran Dzhambekov had been detained by them.

On 20 March 2002 the applicants submitted a written application to the Urus-Martan district prosecutor, complaining of the unlawful arrest of their son by military servicemen in two APCs. The applicants were received by the district prosecutor, who in their presence called the VOVD, the military commander's office and the headquarters of the Ministry of the Interior special operations division no. 100 (referred to as DON-100). These services denied that their vehicles or servicemen had been involved in any operations in the village of Goyty on that night and stated that they had not detained Imran Dzhambekov.

On the same day at about 2 p.m. the first and second applicants talked to officer Ya., deputy military commander of the Urus-Martan district, who allegedly told them that a detainee "from the left side of Sovetskaya Street in Goyty" had been taken that night to the "boarding school". The applicants submitted that the Urus-Martan VOVD had been located in the premises of the former boarding school.

Also on 20 March 2002 the applicants, while standing in front of the gates of the VOVD, noticed a UAZ vehicle and identified it by the signs of white paint and a dent on the back as the one which had been involved in their son's arrest. They also noted the vehicle's number plates.

On 21 March 2002 the applicants again went to Urus-Martan. They submitted that they had been informed by an officer of the military commander's office that their son was currently detained and being questioned in the VOVD, and that he would be released in a day or two.

On 23 March 2002 the applicants, through a middleman, contacted the chief of staff of the district military commander's office A., who told them that they should look for their son at Khankala (the main Russian military base in Chechnya) and that he had been in the custody of the Regional department for combating organised crime (RUBOP). On the same day the second applicant talked to a police detective from the VOVD, Alik Kh., who confirmed that the UAZ vehicle belonged to the head of the VOVD and advised him to look for his son at the RUBOP branch in Grozny. In early April an officer at the Urus-Martan district military commander's office also told the applicants that their son had been detained by the Grozny branch of RUBOP.

On 24 March 2002 at about 10 a.m. the second applicant talked to the head of the criminal investigation department of the VOVD, K., in the courtyard of the VOVD building. The second applicant showed him the UAZ vehicle, but the officer said that the car could have been taken without the VOVD knowing it; he again denied any knowledge of Imran Dzhambekov's detention.

On 25 March 2002 the Urus-Martan district prosecutor's office ("the district prosecutor's office") opened criminal investigation file no. 61058

into the kidnapping of Imran Dzhambekov. On the same day the first applicant communicated all the known details of the APCs and the UAZ vehicle to the prosecutor's office.

At the end of March 2002 the first applicant talked to investigator Sergey L. from the district prosecutor's office, who was in charge of her son's case. He told her that he could not question anyone in the military commander's office but that he had carried out checks and established that the APCs with the said numbers belonged to the district military commander's office and the UAZ to the VOVD. He also said that when he had tried to put some questions to a serviceman from the commander's office he had been threatened. The same investigator later told the applicants that he had visited the VOVD personally and had not found Imran Dzhambekov, but "that there were only four cells there to which he had access".

On 8 April 2002 the head of the Urus-Martan district administration informed the first applicant that her letters concerning an illegal search at her house and detention of her son on the night of 19-20 March 2002 had been forwarded to the military commander of the district to establish who had been responsible.

The applicants submitted that on 15 April 2002 the second applicant had again met with the head of the criminal investigation department of the VOVD, K., at the VOVD and that the latter had denied that Imran Dzhambekov had ever been detained there. As proof, the officer showed the second applicant the log of detainees. The second applicant noted the name "Dzhanashvili" and suggested that it could have been his son, but that his name had been deliberately misspelled. The officer said that he could not show him that man either and refused to assist the applicants in the future.

The applicants also submitted that they had attempted to find a middleman among the military servicemen in order to pay money and obtain the release of their son, but had been told that it was impossible. Some time in April the applicants also contacted a man who worked in Khankala and who told them that Imran Dzhambekov had allegedly been detained there, that he had been charged with crimes related to terrorism and that he had been transferred to Rostov-on-Don on 18 or 24 April with a group of other detainees.

On 24 April 2002 the first applicant wrote a letter to the Chechnya Prosecutor asking him to conduct an investigation and to establish her son's whereabouts.

On 16 May 2002 the first applicant applied in person to the acting Chechnya Prosecutor, Mr Chernov. He invited her to a meeting in his office with a senior military prosecutor, Mr Kolomeyets. The first applicant recounted the story of her son's detention to both men, who assured her that, since details such as the APC and the UAZ numbers were known, the case would certainly be resolved. The military prosecutor assured the applicant that he too would take the case under his personal supervision.

On 18 May 2002 the first applicant submitted another application to the Chechnya Prosecutor. On 20 May 2002 the first applicant's letter was forwarded to the district prosecutor's office for investigation.

On 24 May 2002 the first applicant wrote to the head of the Urus-Martan VOVD and asked him to investigate her son's disappearance and the involvement of the two APCs and the UAZ vehicle, the numbers and other details of which she indicated.

On 28 May 2002 the first applicant was granted victim status in the criminal investigation into her son's abduction.

On 10 June 2002 the first applicant again requested the Chechnya Prosecutor to organise an effective investigation into her son's abduction. She stated in the letter the known details of the vehicles that had taken him away and requested that it be established to which authority they belonged.

On 11 June 2002 the district prosecutor's office replied to the applicants and stated that all the necessary investigative measures had been carried out, but that they had not led to identification of the culprits.

On 22 June 2002 the head of the Urus-Martan district department of the interior (ROVD) informed the first applicant that their office had opened a search file on her missing son and that she would be informed of the results.

On 9 July 2002 the Chechnya Prosecutor's Office informed the first applicant that their office had examined the criminal investigation file concerning her son's abduction, quashed the decision to adjourn the criminal investigation and forwarded the case for further investigation to the district prosecutor's office.

On 24 July 2002 the Chechnya Prosecutor's Office forwarded a similar letter to the first applicant and told her to direct further queries to the district prosecutor's office.

On 2 September 2002 the first applicant wrote a letter to the Urus-Martan military commander's office giving details of her son's abduction and including a request to carry out an investigation and find out his whereabouts.

In January 2003 the first applicant wrote letters to the President of the Russian Federation, the Prosecutor General's Office, the military prosecutor's office and other authorities. Most of her complaints were forwarded to the Urus-Martan district prosecutor's office.

On 23 January 2003 the Chechnya department of the FSB informed the first applicant that they had no information regarding Imran Dzhambekov and that he was not suspected of participation in illegal activities. Her letter was further forwarded to the military prosecutor of the United Group Alignment (UGA) in the Northern Caucasus.

On 31 January 2003 the military prosecutor of the UGA forwarded the first applicant's letter to the military prosecutor of military unit no. 20102, based in Khankala, and instructed him to verify whether the UAZ vehicle

with the number plate indicated by the applicant belonged to the VOVD of Urus-Martan.

On 3 January 2003 the district prosecutor's office informed the first applicant that the investigation of criminal case no. 61058 into her son's abduction had been adjourned on 25 May 2002 owing to a failure to identify the culprits, and had been reopened on 30 January 2003.

On 14 February 2003 the Chechnya Prosecutor's Office informed the first applicant that the investigation in criminal case no. 61058 had been resumed on 30 January 2003 and that the investigation was checking the information concerning the APCs and the UAZ vehicle communicated by her.

On 18 February 2003 the Chief Military Prosecutor's Office informed the first applicant that her application had been forwarded to the military prosecutor of the Northern Caucasus military circuit.

On 18 February 2003 the military prosecutor of military unit no. 20102 responded to the first applicant, informing her that her application, as her previous applications, was not a matter for the military prosecutor's office. The letter further informed her that the criminal case into her son's abduction would only be transferred from the Urus-Martan district prosecutor's office to the military prosecutor's office if it had been established that military servicemen had been implicated in the crime.

On 17 March 2003 the Prosecutor General's Office wrote to a member of the State Duma, Mr Nikitin, in reply to his enquiry concerning missing persons and crimes against civilians in Chechnya. The letter stated that 1,250 criminal investigation files had been opened in respect of 1,802 kidnapped or missing persons. In 2002 alone 565 criminal cases had been opened in respect of 738 missing persons. 559 persons had been found. The letter listed a number of steps taken by the prosecutor's office in order to prevent disappearances and to effectively investigate such cases, including a number of instructions and coordination meetings between various bodies. The letter also contained a list of missing persons, which included Imran Dzhambekov, Magomed Soltymuradov, Rizvan Tatariyev and Sharpudi Visaitov, and stated that criminal investigations were pending into each of those cases. The involvement of servicemen of the Ministry of Defence or the Ministry of the Interior had not been established in any of the cases, and the investigation into all the cases had been adjourned. Measures to solve the crimes continued.

On 3 April 2003 Mr Nikitin forwarded the response of the Prosecutor General's Office to the first applicant for information.

On 5 April 2003 the military prosecutor of the UGA forwarded the first applicant's letter to the military prosecutor of military unit no. 20102.

On 8 April 2003 the first applicant submitted applications to the Minister of the Interior and to the Speakers of the two Chambers of the Federal Assembly, asking them to take into account the situation of the

"disappeared" persons when working on the draft document on granting amnesty in Chechnya.

On 17 April 2003 the Chechnya Prosecutor's Office wrote to the first applicant in response to her complaint. The letter stated that following her son's kidnapping by unknown persons wearing camouflage on 20 March 2002, criminal case no. 61058 had been opened on 25 March 2002 by the district prosecutor's office under Article 126, part 2 of the Criminal Code. On 25 May 2002 the investigation had been adjourned owing to failure to identify the culprits. On 30 January 2003 the investigation had been reopened and accepted for further examination by an investigator of the Urus-Martan district prosecutor's office. During this additional investigation the first applicant had been granted victim status and the second applicant and other witnesses had been questioned about the circumstances of the crime. The letter further stated that the investigation had forwarded requests for information to the various military and police authorities in order to identify APCs nos. 237 and 246 and the UAZ vehicle with number plates 378-02, involved in the abduction. Additional information requests had been forwarded to the Orenburg Region. The letter concluded that, unfortunately, the said investigative steps had not led to the identification of the culprits and to the establishment of Imran Dzhambekov's whereabouts. The investigation had again been adjourned, but measures to solve the crime continued.

On 18 April 2003 the first applicant, acting in her capacity as the head of the NGO "Society of War Victims", forwarded a list of missing persons who had disappeared following their detention by the "power structures" in the Urus-Martan district and elsewhere in Chechnya to the head of the Urus-Martan ROVD, and asked for his assistance in finding them.

On 20 April 2003 the first applicant requested the prosecutor of the Urus-Martan district to give her a detailed update on the investigation of the criminal case concerning her son's abduction.

On 21 April 2003 the military prosecutor of military unit no. 20102 again informed the first applicant that the case was being investigated by the district prosecutor's office and that the military prosecutor would only be involved if military servicemen had been implicated in the crime.

On 21 April 2003 the military prosecutor of the UGA informed the applicants that, according to the information obtained from the military and police authorities of the Urus-Martan district, APCs with the identification numbers 237 and 246 and the UAZ vehicle with number plates R378-02 did not belong to any of these authorities. No special operations had been carried out in Goyty in the Urus-Martan district on the night of 19-20 March 2002 and Mr Dzhambekov had not been detained by servicemen of the federal forces. The letter further advised the first applicant to direct further queries to the district prosecutor's office in charge of the case.

On 22 April 2003 the SRJI, acting on the first applicant's behalf, wrote to the Urus-Martan district prosecutor and to the Chechnya Prosecutor and asked them to provide an update of the criminal investigation into Mr Dzhambekov's disappearance, including the results of the checks concerning the number plates of the vehicles involved.

On 29 April 2003 the head of the Urus-Martan district administration wrote to the first applicant and informed her that the district administration was struggling to cope with the number of "enforced disappearances". The letter stated that between 1 January and 22 April 2003 alone 27 cases of "disappearances" had been recorded in the district, and that as a result of the efforts made by the authorities four persons had been released and three bodies had been found.

On 10 June 2003 the district prosecutor's office informed the first applicant that on 10 June 2003 their office had reopened the investigation into her son's abduction.

On 31 July 2003 the first applicant again wrote to the Urus-Martan district prosecutor and the Chechnya Prosecutor and asked for details of the investigation into her son's abduction.

On 20 August 2003 the second applicant wrote a detailed complaint to the Chechnya Prosecutor. He restated the known circumstances of his son's detention on 20 March 2002, including the details of the vehicles involved. He also referred to the information collected by him and his wife in the weeks following the abduction, according to which the APCs had passed through the military checkpoints without any problems and the UAZ vehicle belonged to the head of the Urus-Martan VOVD. He further complained that when he had been questioned on 31 January 2003 by an investigator from the district prosecutor's office, the latter had refused to enter in the minutes of the interview full information about the number plates of the vehicles involved. The second applicant submitted that when he had accessed the minutes later he observed that the investigator had noted the APC number as "23", even though he had given the number as "237", and had failed to record the number plates of the UAZ. The second applicant requested the prosecutor to resume the investigation of criminal case no. 61068 and to carry out the actions necessary to identify the servicemen responsible, as well as to transfer the case for investigation to the military prosecutor's office in view of the involvement of military servicemen in the abduction.

On 15 September 2003 the Chechnya Prosecutor's Office informed the second applicant that following his complaint the decision of 10 July 2003 to adjourn the investigation had been reversed and on 12 September 2003 the investigation had been resumed in the district prosecutor's office.

It appears that the investigation was adjourned again on 12 October 2003.

In January 2004 several applicants, including the first applicant, joined the open letter to President Putin signed by 131 relatives of persons who had "disappeared" in Chechnya. They referred to the information that in most known cases the disappeared persons had been taken away by State agents, judging from the use of military vehicles and their ability to travel unhindered in groups through military and security roadblocks. They deplored the absence of any official information about their family members following such detention and asked the President to ensure that investigations be conducted into such crimes.

At some point the applicants requested the district prosecutor's office to grant them access to the case file as victims in the proceedings. On 15 April 2004 the district prosecutor's office rejected the first applicant's request for access to the file, on the ground that the investigation was pending.

The applicants appealed the refusal to the district court, and on 6 August 2004 the Urus-Martan Town Court partially allowed the first applicant's complaint against the district prosecutor's office based on the latter's failure to take effective steps and investigate her son's abduction. The Town Court ordered the district prosecutor's office to resume the investigation and to carry out a number of investigative actions as requested by the applicants, such as questioning the former head of the Urus-Martan VOVD and other servicemen from that office named by the applicants, identifying detainee "Dzhanashvili" who had been at the VOVD in March 2002, and so on. The court refused to grant the applicants access to the case file, stating that that right was accorded to victims only on completion of the investigation, and not when the proceedings were adjourned. On 24 August 2004 the Chechnya Supreme Court upheld this decision.

On 12 October 2005 the district prosecutor's office informed the first applicant that the investigation had been resumed on 5 October 2005.

The first applicant submitted that since the abduction of her son her health had deteriorated and that she suffered from a number of chronic illnesses that were made worse by the stress she had been under.

(b) Search for Magomed Soltymuradov

Magomed Soltymuradov disappeared from his house on the night of 10 to 11 January 2002. The applicants submitted that he had been detained by the same military servicemen who had searched the neighbouring house occupied by his relatives, the tenth and eleventh applicants.

On 11 January 2002 at about 9 a.m. the fifth and tenth applicants, Magomed Soltymuradov's sister and uncle, applied in person to the district prosecutor's office, the district administration and the military commander's office. On the same day they submitted to these offices written applications stating the circumstances of Mr Soltymuradov's detention and asking for assistance in finding him. The applicants submitted their application in person to the Urus-Martan district prosecutor, who together with the

applicants went to the Urus-Martan VOVD. When the prosecutor came out of the VOVD building he told the applicants that "the local guys did not do this, we do not work at night. These must be GRU [the Army's Main Intelligence Service] or the FSB." The prosecutor advised the applicants to look for Mr Soltymuradov at the military commander's office or through the administration.

On 11 January 2002 the head of the district administration forwarded the applicants' complaint to the district military commander and asked him to find out the reasons for Mr Soltymuradov's detention and obtain his release.

Also on 11 January 2002 the fifth applicant wrote to the head of the Chechnya administration, Mr Kadyrov, and asked for his assistance in finding her brother.

Throughout the following week Magomed Soltymuradov's relatives maintained a vigil in front of the district prosecutor's office, hoping that he would be released. The applicants also personally contacted several officials in the district administration and the former head of the Grozny administration, Vahid M., who allegedly had good contacts among the military. They did not obtain any information about their relative.

On 17 January 2002 the fifth applicant again wrote to the district military commander. She stated the circumstances of her brother's detention by military servicemen and asked for the commander's assistance in obtaining his release.

On 21 January 2002 the seventh applicant, Magomed Sotymuradov's other sister, wrote to the Urus-Martan district prosecutor, the military commander, the head of the VOVD, the Memorial Human Rights Centre and the Special Envoy of the Russian President for Rights and Freedoms in the Chechen Republic. In her letter she stated the known circumstances of her brother's detention, referred to his medical problems and stated that since his apprehension his relatives had received no information whatsoever about the reasons for his detention and the authority which had carried it out. She asked for assistance in finding her brother.

On 21 January 2002 the Chechnya Prosecutor's Office forwarded the fifth applicant's letter to the Urus-Martan district prosecutor's office.

On 25 January 2002 the district prosecutor's office opened criminal investigation no. 62004 into the abduction of Magomed Soltymuradov by unknown persons. On the same day the fifth applicant was granted victim status in the criminal investigation concerning her brother's abduction.

On 27 January 2002 the fifth applicant wrote to the head of the Chechnya department of the FSB and asked for his assistance in finding her brother and obtaining his release. The letter was co-signed by dozens of their neighbours.

On 2 February 2002 the fifth applicant wrote to the NGO Russian-Chechen Friendship Society and asked for their help in finding her brother.

On 22 March 2002 the Urus-Martan district prosecutor replied to the fifth applicant that the criminal case pending with that office concerning her brother's abduction had failed to identify the culprits.

On 4 April 2002 the applicants received a handwritten note requiring "the relatives of Magomed Soltymuradov to come to the VOVD boarding school building at 3 p.m. on 5 April 2002" and to report to Alik Kh.

On 5 April 2002 the fifth, seventh and twelfth applicants, sisters of the missing man, went to the VOVD. At the entrance they were met by an operational detective, Alik Kh., who confirmed that he had sent the note, and invited only the fifth applicant to come in. Inside he brought her into a room with another officer of the VOVD and told the fifth applicant that her brother had been killed in Grozny on 5 January 2002. The fifth applicant was upset and confused by this statement, because her brother had only been detained on 11 January 2002. She asked if they had any papers confirming his death and if they could obtain the body for burial, but the officers said that they could not do anything because the case was under investigation. They asked her questions about a certain K. from the village of Gekhi, but the fifth applicant said that she did not know anyone from that village.

After that conversation, on 5 and 6 April 2002, the fifth applicant tried to find out further news from the district prosecutor's office, but the investigator responsible for the case was not available.

On 8 April 2002 the fifth applicant talked to an officer at the Chechnya Prosecutor's Office who told her that her brother was not listed among those killed.

In April 2002 the fifth applicant asked other relatives of missing persons who regularly gathered in front of the VOVD building if they knew K. from Gekhi, about whom she had been questioned in the VOVD. She met the brothers of K., who was also missing, and they told her that they in turn had been questioned about Mr Soltymuradov.

On 17 April 2002 the district prosecutor's office informed the fifth applicant that on 25 January 2002 criminal case no. 61004 had been opened by that office.

On 22 May 2002 the fifth applicant submitted a letter to the member of the State Duma for Chechnya, asking for his help in finding her brother.

On 29 May 2002 the fifth applicant submitted a letter to the head of the Urus-Martan VOVD, asking for his help in finding her brother.

On 4 June 2002 the fifth applicant applied to the military prosecutor of military unit no. 20102. She stated the circumstances of Mr Soltymuradov's apprehension and complained that the district prosecutor's office had not made progress in its investigation and had not informed the relatives about the proceedings. She asked the military prosecutor to carry out an investigation into her brother's apprehension.

On 5 June 2002 the fifth applicant submitted a similar letter to the Chechnya Prosecutor. She also asked him to ensure that she would be informed about the progress of the proceedings.

On 13 June 2002 the fifth applicant wrote to the Deputy Head of the Chechnya Government and asked for his assistance in finding her brother.

On 14 June 2002 the Chechnya Prosecutor's Office forwarded the fifth applicant's complaint to the district prosecutor's office.

On 24 June 2002 the acting district military commander informed the fifth applicant that they had no information about the whereabouts of Magomed Soltymuradov.

On 25 June 2002 the Prosecutor's Office for the Southern Federal Circuit forwarded the fifth applicant's complaint to the Chechnya Prosecutor's Office.

On 26 June 2002 the Office of the Government of Chechnya informed the fifth applicant that her complaint has been forwarded to various bodies of the Interior Ministry and the prosecutor's offices with a view to organisation of the search and that she would be informed of the results.

On 27 June 2002 the member of the State Duma replied to the fifth applicant and assured her that he would take all possible steps to help her find her brother. An information request was forwarded to the Chechnya Prosecutor's Office.

On 17 July 2002 the Chechnya Prosecutor's Office forwarded the fifth applicant's application to the district prosecutor's office.

On 20 September 2002 the military prosecutor of the Northern Caucasus military circuit forwarded the fifth applicant's complaint to the military prosecutor of military unit no. 20102 and instructed him to check the facts and to give an answer to the applicant.

On 27 September 2002 the fifth applicant wrote to the head of the Chechnya department of the FSB and requested him to provide her with information about her brother, who had allegedly been detained by officers of that service.

On 7 October 2002 the Urus-Martan district department of the FSB wrote to the fifth applicant to say that they had no information about the detention and whereabouts of Magomed Soltymuradov.

On 14 October 2002 the district prosecutor's office informed the fifth applicant that on 26 March 2002 the investigation in criminal case file no. 61004 had been suspended owing to failure to identify the culprits. The applicant was informed of the possibility to appeal.

On 17 October 2002 the fifth applicant appealed the adjournment of the criminal investigation to the Urus-Martan District Court. She requested the court to quash the adjournment and to require the investigators to carry out a thorough investigation into her brother's disappearance.

On 8 January 2003 the district prosecutor's office wrote in response to the fifth applicant's complaint, stating that the criminal investigation in case

no. 61004 had so far failed to establish Magomed Soltymuradov's whereabouts or to identify his abductors. The applicant was invited to submit any relevant information which came into her possession to that office.

On 28 March 2003 the fifth applicant appealed to the Supreme Court of Chechnya against the Urus-Martan District Court's failure to act. She stated that despite her numerous applications in person to that court no action had been taken in response to her complaint of 17 October 2002 concerning the ineffectiveness of the criminal investigation. On 16 April 2003 the Supreme Court referred the complaint back to the Urus-Martan District Court and instructed it to take appropriate steps.

The thirteenth applicant, the wife of Magomed Soltymuradov, applied to the district court seeking to have her husband declared a missing person. On 3 April 2003 the Urus-Martan District Court granted the request and declared him a missing person as of 10 January 2002. The court took into account the statements of the thirteenth applicant and two neighbours who testified that on the night of 10 to 11 January 2002 her husband had been taken away by unknown persons and had not been seen since. The criminal investigation into the abduction had produced no results. The decision was not appealed and came into force on 13 April 2003. On the same day the court granted the thirteenth applicant's request to certify Magomed Soltymuradov's paternity of her three children, for the purposes of obtaining social-security benefits.

On 24 April 2003 the fifth applicant again complained to the civil and military prosecutors of Chechnya. She restated the known facts of her brother's abduction and of the investigation, in particular referring to the questions posed to her by the VOVD officers in April 2002 about K. and the questions about her brother posed to K.'s relatives. She insisted that her brother could only have been detained by the authorities and asked the prosecutor to ensure an effective investigation.

On 10 June 2003 the fifth applicant wrote to the head of the Administration of Chechnya and asked for his help in finding her missing brother.

On 5 August 2003 the fifth applicant complained to the Chechnya Prosecutor and requested him to reopen the investigation, to take steps aimed at finding her brother and to identify the perpetrators among the State structures.

On 1 September 2003 the Chechnya Prosecutor's Office replied to the fifth applicant that the investigation into her brother's abduction had been reopened on 21 August 2003 and that she could find out about the ongoing investigation at the district prosecutor's office.

On 27 October 2003 the fifth applicant wrote a letter to the Prosecutor General and asked him to ensure a proper investigation into her brother's abduction.

On 5 January 2004 the fifth applicant asked the district prosecutor's office to inform her about the investigation into her brother's abduction.

On 19 April 2004 the fifth applicant again asked the district prosecutor's office to take a number of investigative actions and to inform her of the progress of the investigation.

On 6 May 2004 the district prosecutor's office informed the fifth applicant that the investigation was pending with that office and that she would be informed if her brother's whereabouts were established.

On 13 May 2004 the fifth applicant again wrote to the district prosecutor's office. She claimed that the investigation had not taken any real steps to find her brother or to identify the persons who had abducted him. She asked the prosecutor's office to visit their house, to question all the relatives and neighbours who had been eye-witnesses to Magomed Soltymuradov's abduction and could describe the persons and the vehicles involved and to question the officers of the Urus-Martan VOVD who had information about her brother and K. in April 2002 and the servicemen of the Urus-Martan military commander's office who could authorise the movement of military personnel and vehicles in the district.

On 5 July 2004, in response to a request from the investigator of the district prosecutor's office in charge of criminal case no. 61004, the NGO Memorial stated that, according to their figures, between December 1999 and March 2004, 205 residents of the Urus-Martan district had "disappeared". The NGO stressed that their information was not complete and that in every such case the information had been transferred to the law-enforcement bodies.

On 21 July 2004 the Chechnya Prosecutor's Office informed the fifth applicant that measures were being taken with the aim of finding Magomed Soltymuradov and establishing who his abductors were.

On 26 November 2004 the fifth applicant again asked the district prosecutor's office to inform her about progress in the investigation of her brother's abduction and to allow her to access the case file.

On 2 January 2005 the district prosecutor's office informed the fifth applicant that the investigation had been suspended on the same day for failure to identify the culprits. The fifth applicant was also informed of the possibility to appeal.

In February 2004 several applicants, including the fifth applicant, joined the open letter to the then President of Chechnya Mr Alkhanov, signed by 126 relatives of persons who had "disappeared" in Chechnya. They referred to the information that in most known cases the disappeared persons had been taken away by State agents, judging from the use of military vehicles and the ability of the groups to travel unhindered through military and security roadblocks. They deplored the absence of any official information about their family members following such detention and asked the President to ensure that investigations be conducted into such crimes.

(c) Search for Rizvan Tatariyev

Rizvan Tatariyev was apprehended in his house in the early hours of 22 December 2001. In the morning of 22 December 2001 his relatives learned that on the same night another man, Sharpudi Visaitov, had been detained in their village of Gekhi. The fourteenth applicant, Rizvan Tatariyev's mother, together with the parents of Sharpudi Visaitov, went to Urus-Martan and personally visited the local prosecutor, the military commander's office and the head of the district administration. On the same day the fourteenth applicant submitted two written statements to the Urus-Martan district prosecutor, stating the circumstances of her son's detention and asking him to help establish his whereabouts. The relatives did not receive any news about the detainees.

On 2 January 2002 the district prosecutor's office opened criminal investigation file no. 25180 concerning the kidnapping of Rizvan Tatariyev and Sharpudi Visaitov. The applicants submitted that since that date and until the communication of the complaint to the Government, no one from the investigation had visited their home or questioned any family members or neighbours of Rizvan Tatariyev or Sharpudi Visaitov.

On 3 January 2002 the fourteenth applicant wrote to the head of the Urus-Martan district administration and asked him to help her find her son.

On 6 January 2002 the Chechnya Prosecutor's Office forwarded the fourteenth applicant's complaint to the district prosecutor's office.

On 2 March 2002 the investigator of the district prosecutor's office adjourned the investigation of criminal case no. 25180 for failure to identify the culprits. The order stated that the investigation had established that on 22 December 2001 unidentified persons wearing military-type camouflage uniforms and masks had apprehended Rizvan Tatariyev and Sharpudi Visaitov at their respective homes and had taken them in an unknown direction.

On 8 April 2002 the military prosecutor of military unit no. 20102 wrote to the fourteenth applicant, stating that there were no grounds for claiming the involvement of servicemen of the Ministry of Defence, the FSB or the Interior Troops of the Ministry of the Interior in the abduction of her son. The supporting documents were forwarded to the district prosecutor's office.

On 22 May 2002 the fourteenth applicant submitted a letter to the member of the State Duma for Chechnya, asking for his help in finding her son.

On 25 May 2002 the fourteenth applicant submitted a letter to the Urus-Martan military commander, asking for his help in finding her son.

On 26 June 2002 the Government of Chechnya informed the fourteenth applicant that her complaint had been forwarded to the bodies of the Interior Ministry and the prosecutors' offices with a view to organisation of the search and that she would be informed of the results.

On 27 June 2002 the State Duma deputy replied to the fourteenth applicant and assured her that he would take all possible steps to help her find her son. An information request was forwarded to the Chechnya Prosecutor's Office.

On 28 June and 15 August 2002 the Prosecutor's Office for the Southern Federal Circuit forwarded the fourteenth applicant's complaints to the Chechnya Prosecutor's Office.

On 30 June 2002 the Chechnya department of the FSB informed the fourteenth applicant that the facts stated in her application did not fall within the competence of the FSB.

On 9 July 2002 the Chechnya Prosecutor's Office forwarded the fourteenth applicant's letter to the district prosecutor's office.

On 9 August 2002 the Chief Military Prosecutor's Office informed the fourteenth applicant that her application concerning the search for her son had been forwarded to the military prosecutor of the Northern Caucasus military circuit.

On 29 August 2002 the military commander of the Urus-Martan district replied to the fourteenth applicant, stating that their office had no information about her son. The letter further stated that the military commander's office had no competence to charge anyone with a crime, and that they would continue to make every effort to establish his whereabouts.

On 3 September 2002 the office of the military prosecutor of the Northern Caucasus military circuit forwarded the applicant's complaint to the military prosecutor of military unit no. 20102 in Khankala and instructed him to verify the facts and to submit an answer to the applicant.

On 23 October 2002 the Urus-Martan ROVD informed the fourteenth applicant that criminal investigation file no. 25180 concerning the abduction of her son was pending with the district prosecutor's office.

On 13 November 2002 the district prosecutor's office issued a notice to the district social-security service confirming that Rezvan Tatariyev had been abducted on 21 December 2001 in Urus-Martan and that his whereabouts remained unknown, despite a pending investigation.

On 25 February 2003 the fourteenth applicant was granted victim status in criminal investigation no. 25180 concerning the abduction of Rizvan Tatariyev by unknown armed persons in military uniform.

On 31 March 2003 the fourteenth applicant wrote to the Urus-Martan district prosecutor and asked him to help her find her son.

On 14 May 2003 the Prosecutor's Office for the Southern Federal Circuit forwarded the fourteenth applicant's complaint to the Chechnya Prosecutor's Office.

On 7 June 2003 the Chechnya Ministry of the Interior forwarded the fourteenth applicant's complaint to the Urus-Martan ROVD.

On 11 June 2003 the district prosecutor's office reopened the criminal investigation into Rizvan Tatariyev's abduction and informed the fourteenth applicant accordingly.

On 17 June 2003 the Chechnya Prosecutor's Office informed the fourteenth applicant that on 2 March 2002 criminal investigation no. 25180 into her son's abduction had been adjourned for failure to identify the culprits. On 10 June 2003 the Urus-Martan district prosecutor had quashed that decision as unlawful and forwarded the case for additional investigation.

On 19 June 2003 the head of the Urus-Martan ROVD informed the fourteenth applicant that the criminal investigation into her son's abduction was ongoing.

On 11 July 2003 the district prosecutor's office again adjourned the investigation and informed the fourteenth applicant of the right to appeal.

In April 2004 the fourteenth applicant asked the Urus-Martan military commander to help her find out the reasons for the detention and the whereabouts of her son, who had been apprehended on 22 December 2001 by State servicemen at his own house.

On 8 December 2005 the head of the criminal police department of the Urus-Martan ROVD informed the fourteenth applicant that they had no information about the carrying-out of a special operation on 22 December 2001 or about the detention of her son by servicemen from the police force or the army. He also stated that information requests had been sent to all the district departments of the interior in Chechnya and further afield in the region, as well as to the main information centre of the Ministry of the Interior.

In September 2006 several applicants, including the fourteenth applicant, joined an open letter to the Chairman of the Parliament of Chechnya, signed by more than a hundred relatives of persons who had "disappeared" in Chechnya. They referred to the information that in most known cases the disappeared persons had been taken away by State agents. They deplored the absence of any official information about their family members following such detention and asked the Chairman to ensure that investigations be conducted into such crimes.

(d) Search for Sharpudi Visaitov

Sharpudi Visaitov was apprehended in his house in the early hours of 22 December 2001. In the morning of 22 December 2001 the eighteenth and nineteenth applicants (Sharpudi Visaitov's father and mother) learned that on the same night another man, Rizvan Tatariyev, had been detained in Gekhi. Together with the parents of Tatariyev the applicants went to Urus-Martan and personally visited the local prosecutor, the military commander's office and the head of the district administration, stating the circumstances of their sons' detention and asking them to help establish

their whereabouts. They did not receive any news about the detainees (see above).

On 24 December 2001 the eighteenth applicant wrote to the Urus-Martan district prosecutor and the military commander and asked them about the reasons for his son's detention.

On 2 January 2002 the Urus-Martan district prosecutor's office opened criminal investigation file no. 25180 into the abduction of Rizvan Tatariyev and Sharpudi Visaitov by unknown persons. The applicants submitted that despite the opening of the investigation, until the communication of the complaint to the Government no one conducting the investigation had visited their home or questioned any family members or neighbours of theirs or of Rizvan Tatariyev.

On 8 April 2002 the military prosecutor of military unit no. 20102 replied to the eighteenth applicant that it had been established that no servicemen of the Ministry of Defence or of the Interior Troops of the Ministry of the Interior had participated in the actions of which he complained. The complaint had therefore been forwarded to the Urus-Martan district prosecutor's office.

On 21 May 2002 the nineteenth applicant wrote to the Urus-Martan district military commander and asked for assistance in finding her son, who had been taken away by unknown armed servicemen.

On 26 June 2002 the Chechnya Government sent the nineteenth applicant's complaint to the district prosecutor's office, the ROVD, the Chechnya Prosecutor's Office and the military prosecutor of the Northern Caucasus military circuit.

On 28 June and 19 August 2002 the Prosecutor's Office for the Southern Federal Circuit forwarded the nineteenth applicant's complaints to the Chechnya Prosecutor's Office.

On 9 July and on 17 July 2002 the Chechnya Prosecutor's Office forwarded the nineteenth applicant's complaints to the district prosecutor's office.

On 27 July 2002 the assistant to the State Duma member for Chechnya replied to the nineteenth applicant and informed her that the member would take all steps to help her find her son.

On 28 February 2003 the nineteenth applicant was granted victim status in criminal investigation no. 25180 concerning the abduction of Sharpudi Visaitov.

On 7 December 2004 the nineteenth applicant wrote to the district prosecutor's office. She reiterated the available information about her son's arrest and insisted that the detention had been carried out by State servicemen. She asked the prosecutor to take a number of steps in order to identify the agency, the vehicles and the servicemen involved in the apprehension and thus to establish the whereabouts of her son. She also asked him to inform her of progress in the investigation.

The nineteenth applicant submitted that since her son's disappearance her health had deteriorated significantly. She suffered from a number of chronic diseases of the heart and the respiratory system and from hypertension, and in August and September 2001 had twice been taken to hospital. In September 2001 she was advised to undergo surgical treatment in Moscow, which she had not done.

(e) Summary of the investigations as submitted by the applicants

The applicants were thus informed that criminal investigation files had been opened by the Urus-Martan district prosecutor's office in respect of the kidnappings of their relatives: no. 61068 in respect of Imran Dzhambekov, no. 62004 in respect of Magomed Soltymuradov and no. 25180 concerning the abduction of Rizvan Tatariyev and Sharpudi Visaitov. These proceedings were on several occasions adjourned and reopened, but produced no tangible results.

The first applicant was granted victim status on 28 May 2002 in criminal investigation no. 61068 into her son's abduction. On 25 January 2002 the fifth applicant was granted victim status in criminal investigation no. 62004 concerning her brother's abduction. On 25 February 2003 the fourteenth applicant and on 28 February 2003 the nineteenth applicant were granted victim status in criminal investigation file no. 25180 concerning the abduction of their sons. It appears that no other relatives of the missing men were granted victim status in the proceedings, and hardly anyone among the relatives and neighbours – except for those granted victim status – was questioned.

3. Information submitted by the Government about the investigation

Despite a specific request by the Court, the Government failed to disclose most of the material in criminal files nos 61068, 62004 and 25180. They provided only copies of decisions to suspend and resume the investigations and to grant victim status, as well as the letters to the relatives informing them of the adjournment and reopening of the proceedings. In particular, the Government did not submit copies of any of the witness statements to which they referred. Relying on the information obtained from the Prosecutor General's Office, the Government stated that the investigation was in progress and that disclosure of the documents would be in violation of Article 161 of the Code of Criminal Procedure, since the file contained information of a military nature and personal data concerning the witnesses or other participants in the criminal proceedings.

With regard to the three investigations, the Government stated that the applicants' statements that the persons who had kidnapped their relatives belonged to State agencies could not be confirmed. It was impossible to identify the perpetrators of the crimes. The applicants had stated during

questioning that they did not recall any details of the clothes, weapons or markings on the uniforms of the abductors.

The Government stated that the investigating authorities had sent requests for information to the competent State agencies and taken other necessary steps, but had found no evidence to support the involvement of the "special structures" (*спецподразделений*) in the crimes. The law-enforcement authorities of Chechnya had never arrested or detained the applicants' four relatives on criminal or administrative charges and had not carried out criminal investigations in their respect. The investigations had been adjourned and reopened on several occasions, and the applicants had been informed from time to time. The Prosecutor General's Office had supervised the progress of the investigations.

In reply to the Court's requests for information about the progress of the investigation, the Government submitted the following information.

(a) Investigation into the kidnapping of Imran Dzhambekov

On 25 March 2002 the Urus-Martan district prosecutor's office opened criminal investigation no. 61058 into the kidnapping of Imran Dzhambekov. According to a document issued on 9 June 2006 by the acting Urus-Martan district prosecutor, the main aspect of the crime examined by the investigation was the involvement of "power structures and military units" ("*силовых структур и воинских подразделений*»).

On 25 March 2002 the first applicant was questioned as a witness. On 31 January 2003 the first applicant was granted the status of victim in the investigation and questioned. She was questioned again on 20 June 2003 and on 18 October 2005. According to the Government, the first applicant stated that her son had been taken away by a group of about ten or twelve armed and masked men wearing camouflage uniforms, who had entered their house at around midnight on 19 March 2002. The men had taken her son to two APCs which had been stationed not far from the house. She had followed the APCs on foot, while her husband had taken his car and followed the two APCs to the road towards Urus-Martan. He had noted their identification numbers as 237 and 246; he had also noted the figures "02" on the number plates of a UAZ vehicle which had accompanied them. The first applicant had reached the roadblock situated at the exit of the village on foot, where she had been told that the vehicles had not used that road.

The second applicant was questioned on 31 January 2003 and 26 October 2005 and stated that on 19 March 2004 [should probably read 2002] his son had been taken away by a group of men dressed in camouflage uniforms. After the abductors had left, the second applicant had run into the street and seen a group of men walking away, but he had not seen the APCs and vehicles. His wife, the first applicant, had pursued the men on foot, while he had taken his car and followed two APCs and a UAZ vehicle along Lenina Street towards the exit to Urus-Martan. He then decided to go to the head of

the local administration, but had not found him. At about 2 a.m. on the same night he had seen the same APCs and UAZ moving towards Urus-Martan; he had not seen the identification numbers except for the figures "23" on one APC.

The Government concluded that the statements made by the first and the second applicants to the investigation were mutually contradictory and inconsistent with their statements submitted to the Court. The Government thus questioned their credibility and consistency. The Government also asserted that the applicants' statements that they had seen the military vehicles had been without foundation, because they had seen the APCs one and a half hours after the kidnapping of their son, and thus there were no grounds for suspecting that Imran Dzhambekov had been transported in them.

The Government also stated that on 27 February 2003 the investigators had questioned officer Ya., deputy head of the district military command, who had denied that he had known Imran Dzhambekov or had any information about his abduction.

On 2 December 2005 an investigator had carried out an examination of the scene of the crime at the Dzhambekovs' house. On 5 and 7 December 2005 four of the applicants' neighbours had been questioned, who stated that they had not seen the persons who had kidnapped Imran Dzhambekov or the vehicles which they had used.

The head of the Urus-Martan district administration and the head of its administrative department stated in February 2006 and December 2005 respectively that they did not know the Dzhambekov family and were not aware of their son's abduction. They did not have any information either about the participation of the district's law-enforcement officers in the detention of Imran Dzhambekov.

The Government also stated that the Urus-Martan district military commander and the Chechnya department of the FSB had informed the investigation that they had no information relevant to the case. The local bodies of the Interior Ministry and the prosecutors' offices had never detained Imran Dzhambekov and had carried out no criminal investigation in respect of him. He had not been brought to any of the remand centres in the Southern Federal Circuit.

As it follows from the decisions to adjourn the investigation submitted by the Government, it has been established that the abductors used two APCs with the identification numbers 237 and 246 and a khaki-coloured UAZ-469 with the number plate "R-378 02".

(b) Investigation into the kidnapping of Magomed Soltymuradov

In relation to the investigation into Magomed Soltymuradov's kidnapping, criminal investigation no. 61004 was opened by the Urus-Martan district prosecutor's office on 25 January 2002. According to a

document issued on 9 June 2006 by the acting Urus-Martan district prosecutor, the main version of the crime examined by the investigation was the involvement of "power structures and military units" ("*силовых структур и воинских подразделений*»).

On 25 January 2002 the fifth applicant was questioned and granted victim status. She was again questioned on 3 December 2004. She stated that unknown persons had entered the family's house at about 3 a.m. on 11 January 2002 and taken her brother away. She had learnt of the crime from her uncle, the tenth applicant.

The tenth applicant was also questioned on 25 January 2002 and confirmed that on the night in question a group of men wearing camouflage uniforms and masks had broken the door of his house, searched the house and left. In the morning he learnt that Magomed Soltymuradov had disappeared, and saw footprints in the fresh snow in the courtyard. He was not aware who had abducted his nephew and whether they had used any vehicles.

The Government noted that the applicants had stated that 4,000 roubles had disappeared from the house; however they had not stated this to the domestic investigation. They also specified that the fifth applicant had told the investigation "that [on 5 April 2002] the operational detective [of the Urus-Martan VOVD], Kh., had not informed her of the death of her brother, but had asked for information about the possible death of the latter".

On 6 December 2004 the investigator examined the scene of the crime – no. 5 Polevaya Street, Urus-Martan.

(c) Investigation into the kidnapping of Rizvan Tatariyev and Sharpudi Visaitov

On 2 January 2002 the Urus-Martan district prosecutor's office opened criminal investigation file no. 25180. The decision stated that "on 22 December 2001 at about 4 a.m. servicemen of the federal forces wearing balaclavas, [had] detained and [taken] away in an unknown direction Rizvan Tatariyev and Sharpudi Visaitov. The whereabouts of the said persons [had] not been established". Further decisions also referred to the "army camouflage uniforms" of the kidnappers.

On 28 February 2003 the nineteenth applicant was granted victim status and questioned. On 10 December 2004 the eighteenth and nineteenth applicants were questioned. Both confirmed the circumstances of their son's detention at 4 a.m. on 22 December 2001 by a group of seven or eight armed men in uniforms and masks. Two other relatives of Sharpudi Visaitov who had not been eye-witnesses to his apprehension were also questioned in November 2004, but were not aware of the identities of the kidnappers.

On 25 February 2003, 12 December 2004 and 28 July 2005 the fourteenth applicant was questioned and granted victim status. She testified

that on 22 December 2001 at about 3 a.m. unknown persons wearing camouflage uniforms and armed with automatic weapons had entered the family's house and taken away her son Rizvan Tatariyev. She could not remember any details of the abductors' clothes. Neither had she seen any vehicles that night. Another relative who was at home at the time of Tatariyev's arrest had confirmed the statements, but could not add anything to the description of the abductors or the reasons for the crime.

4. Detention of the first, fifth and fourteenth applicants and subsequent events

(a) Events of 11-15 December 2002

On 11 December 2002 Zaynap Dzhambekova (the first applicant), Aminat Ependiyeva (the fifth applicant) and Zara Tatariyeva (the fourteenth applicant) learned that on that day in the town of Gudermes a "congress of the Chechen people" was to take place. It was announced that the congress would be attended by members of the State Duma and the Chechnya and Federal Governments and by journalists. The three women decided that they would travel there and try to draw attention to their problems. They were joined by a fourth woman who was also looking for her missing relative, Khamsat Ts.

At about 2 p.m. on 11 December 2002 the three women arrived at the assembly hall in Gudermes where the congress was to take place. They chose a place about 30-40 metres from the entrance, so as to be seen by the participants and the media. In order to get their message across they unfolded two homemade posters which said: "Give our sons back", "Stop abducting people" and "Stop the genocide".

The applicants submitted that they had been noticed by journalists who started to film them. A few people came up to them and asked questions. One elderly man approached them and asked where they were from and wished them good luck.

After about five minutes a bus stopped nearby and twenty-five to thirty policemen ran out. They rushed at the women, threw their posters on the ground and destroyed them. Other policemen took the women by force into the bus, which took them to the Gudermes ROVD. There they were put into one cell. Detained with them was the old man from Gudermes who had come up to them to show his sympathy and whose name was, as they found out, Khalid E.

The applicants submitted that their cell had been extremely cold and dirty. The window was not glazed but covered with a metal grille and a steel sheet with holes, through which cold air was coming. Most of the cell was occupied by a wooden bunk with one dirty blanket. There were also plastic bottles with urine and remains of food strewn over the floor and the bunk. The applicants described the smell in the cell as unbearable.

After about half an hour the applicants and Khalid E. were taken out of the cell one by one and searched. Their bags and clothes were also searched. Then an investigator questioned them about the picket and they signed the transcripts of the interviews. They were then returned to the cell.

At about 5 p.m. that day they were taken out of the cell and escorted to the Gudermes Town Court. However, half-way to the court building a policeman caught up with them and said that the head of the VOVD had ordered them to return. The four women and Khalid E. were thus taken to the same cell.

They started to knock on the door and demand that they be kept separately from the man. They wanted their relatives to be notified of where they were. They also complained about the cold and dirt, but their complaints were ignored. The policeman on duty told them that they had no more blankets. The four women and Khalid E. spent the night in the cell, suffering from bitter cold. The first applicant submitted that during the night Khamsat Ts. and the fourteenth applicant, who were both over 60 years old, had cramps and they had to massage them and give them some heart medicine they found in their bags.

In the morning of 12 December 2002 the women again demanded to be kept separately from the man, to be transferred to a heated cell, to be allowed to notify their relatives and to get a lawyer. The staff of the VOVD noted their demands but did not do anything. Later that day two young men were brought to the same cell. Both had visible signs of beatings on their heads and said that they had been beaten by the police in order to make them confess. The cell now had four female and three male detainees.

In the evening of 12 December 2002 the four women were taken out of the cell and taken to the temporary confinement ward (IVS). They were again searched and their belongings and medicines were taken from them. The four women were placed in a cell that was warm, but extremely dirty. There were several dirty mattresses and pillows and one piece of a blanket. There were also two buckets for use as toilets, which were emptied in the mornings. The guards told them that the door would remain locked during the night and that it was no use knocking. In the evening they were given some food and the guard told them that it had come from Khalid E., so the women guessed that it had been brought by his relatives. It was the first time in one and a half days that the women had received any food. Later that night a guard brought them one loaf of bread and some hot water and said that it was the daily ration for four people. The women were appalled by such treatment and refused to accept it, declaring a hunger strike.

Later that night Khamsat Ts.'s condition again worsened. She was suffering from diabetes and heart disease and was in pain. The applicants called the guard, and some time later Khamsat was taken to a doctor on duty who gave her some pills and then returned her to the cell. The doctor

promised to inform the head of the ward that she was unfit for detention, but she remained in the cell another day.

In the evening of 13 December 2002 the guards took out Khamsat Ts. and said that they would take her to hospital. The applicants were very worried about her, knowing that the curfew was already in place and that it was unlikely that there would be any doctors in the hospital in the evening.

During the night of 13 to 14 December 2002 the applicants were awoken by the sound of blows and cries of a man who was asking not to be beaten. They were very frightened and could not help thinking of their missing relatives, that they were probably also subjected to beatings and torture. The three applicants remained in the same cell until 15 December 2002, refusing to accept food.

On 15 December 2002 the first, fifth and fourteenth applicants were taken to the Gudermes Town Court. There was also a lawyer invited by the NGO Memorial, who had been alerted by the applicants' relatives. The judge invited them into the courtroom one by one and asked them about the circumstances of the picket, if they had obstructed anyone's passage or disturbed the public order. The applicants explained the circumstances of their picket and denied that they had created any disturbance. They also complained about the length and conditions of their detention. The first applicant submitted that the judge had orally agreed with them that their detention between 11 and 15 December 2002 had been unlawful and said that they would be released. She told them that the written decision would be issued later.

The applicants submitted that they had not insisted on obtaining copies of the decisions because they had been exhausted and sick and wanted to get home as soon as possible. The first applicant was feeling unwell and her husband, who had been waiting for her outside the court, took her to the nearest hospital, Grozny no. 7, where she remained until 8 January 2003. She was diagnosed with a number of acute bronchial and gastric illnesses, anaemia and other health problems.

On 15 December 2002 the applicants learned that the fourth woman who had been detained with them, Khamsat Ts., had been released on the evening of 13 December 2002, after the imposition of the curfew. She later told them that on the following day, 14 December 2002, she had managed to get home and to inform the applicants' relatives about their whereabouts for the first time.

The applicants also submitted that the old man who had been detained with them had been taken to the court on 15 December 2002 and released.

The applicants submitted that they had obtained copies of the decisions issued on 15 December 2002 several days later. Identical decisions were issued in respect of the first, fifth and fourteenth applicants. The decisions stated that on 11 December 2002 each of them had participated in an unauthorised picket and had obstructed the holding of the congress of the

Chechen people. Referring to section 20.1 of the Code of Administrative Offences ("Violation of the prescribed order governing the organisation or holding of a gathering, meeting, demonstration, march or picket"), the Gudermes Town Court sentenced each applicant to three days' administrative detention.

(b) Subsequent proceedings

On 23 December 2002 the first and fifth applicants appealed against the decisions of the Gudermes Town Court. They stated that section 20.2 of the Code provided for up to fifteen days' administrative detention only in cases where an unauthorised meeting had been held in the immediate vicinity of a nuclear energy facility. In all other cases the said section prescribed only a fine. The applicants also disagreed that they had disturbed the holding of the congress or otherwise breached public order. The first and fifth applicants complained that their detention for four days had been unlawful and that they had been detained in inhuman conditions which had led to health problems for all of them. They claimed 200,000 roubles each in damages from the Gudermes VOVD.

The fourteenth applicant did not appeal the decision of 15 December 2002 issued in her respect because, as she submitted, she was still unwell and because she had lost faith in the judicial system.

On 27 January 2003 the Chechnya Supreme Court reviewed the first and fifth applicants' appeals. The Supreme Court altered the decisions of 15 December 2002 with regard to the part sentencing the applicants to administrative arrest, owing to the absence of such a penalty in section 20.2 of the Code of Administrative Offences. Instead it sentenced each of the two applicants to a fine in the amount of five minimum monthly wages. Because the applicants had already served the detention they were dispensed from payment of the fines. The Supreme Court did not address the applicants' complaints concerning the lawfulness and conditions of or compensation for their detention.

The first and fifth applicants tried to obtain supervisory review of the decision of 27 January 2003 and requested that their civil claims to the VOVD be reviewed. Their requests were turned down by the Chechnya Supreme Court.

B. Relevant domestic law

Section 20.2 of the Code of Administrative Offences (no. 195-FZ of 30 December 2001) provides in parts 1 and 2 that organisers of and participants in a gathering, meeting, demonstration, march or picket who violate the prescribed order of the event are liable to a fine of between five and twenty minimum monthly wages. Part 3 of the same section provides that the holding of an unauthorised demonstration in the immediate vicinity of a

nuclear energy facility is punishable by a fine of between ten and twenty minimum monthly wages, or by administrative detention of up to fifteen days.

COMPLAINTS

A. Complaints in respect of the disappearances of Imran Dzhambekov, Magomed Soltymuradov, Rizvan Tatariyev and Sharpudi Visaitov

1. The applicants complained under Article 2 of the Convention of a violation of the right to life in respect of their relatives Imran Dzhambekov, Magomed Soltymuradov, Rizvan Tatariyev and Sharpudi Visaitov. The applicants submitted that the circumstances of their arrest and the long period during which their whereabouts could not be established indicated that they had been killed by State agents. The applicants also claimed that the State had failed in its positive obligation to protect the life of Imran Dzhambekov, Magomed Soltymuradov, Rizvan Tatariyev and Sharpudi Visaitov. Finally, they complained that no effective investigation had been conducted into the disappearance of their four relatives.

2. The applicants next referred to Article 3 of the Convention, claiming that they had serious grounds for believing that Imran Dzhambekov, Magomed Soltymuradov, Rizvan Tatariyev and Sharpudi Visaitov had been subjected to torture and inhuman treatment when in detention and that no effective investigation had been conducted in that respect. Under this Article the applicants also submitted that they had suffered severe mental distress and anguish in connection with the disappearance of their close relatives and on account of the State's failure to conduct a thorough investigation into that disappearance, and that as a result the first and nineteenth applicants' health had deteriorated drastically.

3. The applicants maintained that the provisions of Article 5 relating to the lawfulness of detention and guarantees against arbitrariness had been breached in respect of their four relatives.

4. The applicants next complained under Article 6 § 1 of the Convention that under national law they were barred from filing a civil claim to obtain compensation for their relatives' unlawful detention or death pending the outcome of the criminal investigation.

5. The applicants maintained that the detention of their close relatives constituted unlawful and unjustified interference with their family life, in breach of Article 8 of the Convention. The applicants further relied on this provision in alleging that the intrusion by the servicemen into their houses

and the ensuing searches had been unlawful and had infringed their right to respect for their home.

6. The applicants alleged that no effective remedies had been available to them in respect of their complaints under Articles 2, 3, 5 and 8 of the Convention, contrary to Article 13 of the Convention.

7. The applicants relied on Article 14 in conjunction with Articles 2, 3, 5, 6 § 1, 8 and 13 of the Convention, stating that the above violations had occurred because of their Chechen ethnic origin and residence in Chechnya.

8. The applicants alleged, in their latest submissions, that the Government's failure to produce copies of the files of the criminal investigation constituted a violation of Articles 34 and 38 § 1 of the Convention.

B. Complaints in respect of the first, fifth and fourteenth applicants' detention from 11 to 15 December 2002

1. The first, fifth and fourteenth applicants claimed that they had been subjected to treatment contrary to Article 3 of the Convention on account of the conditions of their detention from 11 to15 December 2002.

2. The first, fifth and fourteenth applicants alleged a number of violations of Article 5 on account of their administrative detention. Firstly, their detention had not been covered by the grounds set out in Article 5 § 1 and had not complied with the procedure prescribed by law. Secondly, it had not been duly authorised and they had not been released within a reasonable time pending trial, contrary to Article 5 § 3. Finally, the applicants submitted that the violations of Article 5 had been further aggravated by the inhuman conditions of their detention, in breach of Article 3.

3. The first, fifth and fourteenth applicants complained that both Articles 10 and 11 had been breached when their picket had been broken up by force and they had been placed in detention. The applicants argued that the actions of the authorities had been unlawful, had not pursued a legitimate aim and had not been necessary in a democratic society.

THE LAW

A. The disappearances of Imran Dzhambekov, Magomed Soltymuradov, Rizvan Tatariyev and Sharpudi Visaitov

1. The Government's preliminary objection

The Government contended that the application should be declared inadmissible for non-exhaustion of domestic remedies. They noted in this

regard that the investigation into the abduction of the applicants' relatives had not yet been completed. The Government also argued that it had been open to the applicants to lodge a court complaint about the actions or omissions of the investigating or other law-enforcement authorities, but that they had not availed themselves of that remedy (with the exception of the first applicant).

The applicants disputed the Government's objection. They argued that the criminal investigation had proved to be ineffective and that their complaints to that effect, including the first applicant's application to the court, had been futile. They also alleged the existence of an administrative practice of non-investigation of crimes committed by State servicemen in Chechnya and referred to the other cases concerning such crimes reviewed by the Court, and also to reports of various NGOs and international bodies.

The Court considers that the question of exhaustion of domestic remedies is so closely linked to the complaint about the effectiveness of the investigation, and thus to the merits of the case, that it is inappropriate to determine it at the present stage of the proceedings.

The Court therefore decides to join this objection to the merits.

2. Merits of the application

1. The applicants complained under Article 2 of the Convention of a violation of the right to life in respect of Imran Dzhambekov, Magomed Soltymuradov, Rizvan Tatariyev and Sharpudi Visaitov, and of the authorities' failure to conduct a proper investigation. Article 2 of the Convention provides:

> "1. Everyone's right to life shall be protected by law. No one shall be deprived of his life intentionally save in the execution of a sentence of a court following his conviction of a crime for which this penalty is provided by law.
>
> 2. Deprivation of life shall not be regarded as inflicted in contravention of this article when it results from the use of force which is no more than absolutely necessary:
>
> (a) in defence of any person from unlawful violence;
>
> (b) in order to effect a lawful arrest or to prevent the escape of a person lawfully detained;
>
> (c) in action lawfully taken for the purpose of quelling a riot or insurrection."

The Government submitted that the circumstances of the applicants' relatives' deaths were under investigation. It had not been established that State agents had been involved in the crimes. The investigation was in compliance with Article 2 of the Convention.

The applicants submitted that it was beyond reasonable doubt that their relatives had been detained by servicemen and then deprived of their lives, while still under the full control of State representatives. The applicants submitted that each of their relatives had been detained by servicemen in

similar circumstances. They stated that since their relatives had been missing for a very lengthy period, it could be presumed that they were dead. That presumption was further supported by the circumstances in which they had been arrested, which should be recognised as life-threatening. They also stated that the Government's failure to produce the documents from the case files or to provide a plausible explanation of the events placed the burden of proof on the Government, who should be obliged to prove that their agents were not responsible for the arbitrary detention and killing of Imran Dzhambekov, Magomed Soltymuradov, Rizvan Tatariyev and Sharpudi Visaitov. All the information disclosed from the criminal investigation files supported their assertion as to the involvement of State agents in the abductions.

As regards the procedural obligation under Article 2, the applicants argued that even though investigations had been opened into the abductions of the four men, they had been ineffective and had failed to demonstrate any progress over a period of several years. The applicants noted that many important steps had been performed only after a delay or after the communication of the complaint to the Russian authorities, and that they had had no opportunity to acquaint themselves with the case files. No steps had been taken by the investigators to identify and question the possible abductors of Imran Dzhambekov, Magomed Soltymuradov, Rizvan Tatariyev and Sharpudi Visaitov. The military prosecutor's office had not been involved in the investigations, despite the information as to the participation of military servicemen in the abductions. The applicants also asked the Court to draw inferences as to the ineffectiveness of the investigation from the Government's failure to disclose the content of the case files to the applicants or the Court.

The Court considers, in the light of the parties' submissions, that the complaint raises serious issues of fact and law under the Convention, the determination of which requires an examination of the merits. It concludes therefore that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 of the Convention. No other ground for declaring it inadmissible has been established.

2. The applicants stated that they had been subjected to treatment contrary to Article 3 of the Convention as a result of the abduction and killing of their close relatives and the authorities' complacency in the face of their complaints. They also argued that their relatives had been ill-treated on their arrest and that the State had failed to investigate that allegation. Article 3 reads:

> "No one shall be subjected to torture or to inhuman or degrading treatment or punishment."

The Government denied that allegation, referring to the absence of any such information from the investigations.

The Court considers, in the light of the parties' submissions, that the complaint raises serious issues of fact and law under the Convention, the determination of which requires an examination of the merits. It concludes therefore that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 of the Convention. No other ground for declaring it inadmissible has been established.

3. The applicants complained that Imran Dzhambekov, Magomed Soltymuradov, Rizvan Tatariyev and Sharpudi Visaitov had been subjected to unacknowledged detention by State representatives and thus deprived of their liberty in violation of Article 5 of the Convention. The relevant parts of Article 5 provide:

> "1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law:
>
> ...
>
> (c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so;
>
> ...
>
> 2. Everyone who is arrested shall be informed promptly, in a language which he understands, of the reasons for his arrest and of any charge against him.
>
> 3. Everyone arrested or detained in accordance with the provisions of paragraph 1 (c) of this Article shall be brought promptly before a judge or other officer authorised by law to exercise judicial power and shall be entitled to trial within a reasonable time or to release pending trial. Release may be conditioned by guarantees to appear for trial.
>
> 4. Everyone who is deprived of his liberty by arrest or detention shall be entitled to take proceedings by which the lawfulness of his detention shall be decided speedily by a court and his release ordered if the detention is not lawful.
>
> 5. Everyone who has been the victim of arrest or detention in contravention of the provisions of this Article shall have an enforceable right to compensation."

The Government submitted that there was no evidence that the applicants' relatives had been deprived of their liberty by State authorities in violation of Article 5 of the Convention.

The Court considers, in the light of the parties' submissions, that the complaint raises serious issues of fact and law under the Convention, the determination of which requires an examination of the merits. It concludes therefore that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 of the Convention. No other ground for declaring it inadmissible has been established.

4. The applicants complained of their inability to gain access to a court under Article 6 of the Convention which, in its relevant parts, provides:

> "In the determination of his civil rights and obligations ..., everyone is entitled to a fair ... hearing ... by [a] ... tribunal..."

The Government disputed this allegation. They noted that the first applicant's complaint concerning the ineffectiveness of the investigation had been partially allowed by the Urus-Martan District Court on 6 August 2004. Furthermore, on 3 April 2003 the same court had declared Mr Soltymuradov a missing person.

The Court considers, in the light of the parties' submissions, that this complaint raises serious issues of fact and law under the Convention, the determination of which requires an examination of the merits. It concludes therefore that the complaint is not manifestly ill-founded within the meaning of Article 35 § 3 of the Convention. No other ground for declaring it inadmissible has been established.

5. The applicants further complained under Article 8 of the Convention of an infringement of their right to respect for their homes on account of the intrusion of the servicemen into their houses and the ensuing search, and also on account of the disruption of their family lives as a result of their relatives' disappearance. Article 8 provides:

> "1. Everyone has the right to respect for his private and family life, his home and his correspondence.
>
> 2. There shall be no interference by a public authority with the exercise of this right except such as is in accordance with the law and is necessary in a democratic society in the interests of national security, public safety or the economic well-being of the country, for the prevention of disorder or crime, for the protection of health or morals, or for the protection of the rights and freedoms of others."

The Government argued that this complaint should be declared inadmissible for non-exhaustion of domestic remedies and that, in any event, there was no evidence of the alleged searches of the applicants' homes by representatives of the State in breach of Article 8 of the Convention.

The applicants disagreed and maintained their complaint. They claimed that the intrusion into their houses and the ensuing searches had been in breach of domestic law, had not pursued a legitimate aim and had not been necessary in a democratic society. They also argued that they had notified the respective authorities accordingly.

In so far as the applicants complain about the searches, the Court does not find it necessary to examine the arguments advanced by the parties since this part of the application is in any event inadmissible for the following reasons.

The Court reiterates that while, in accordance with Article 35 § 1 of the Convention, those seeking to bring their case against the State before the Court are required to use first the remedies provided by the national legal system, there is no obligation under the said provision to have recourse to remedies which are inadequate or ineffective. If no remedies are available or

if they are judged to be ineffective, the six-month period in principle runs from the date of the act complained of (see *Hazar and Others v. Turkey* (dec.), no. 62566/000 et seq., 10 January 2002).

In the instant case, there is no evidence that any of the applicants properly raised before the domestic authorities their complaints alleging a breach of their right to respect for their home. But even assuming that in the circumstances of the present case no remedies were available to the applicants, the events complained of by applicants nos 1 to 17 took place on 19 March 2002, 11 January 2002 and 22 December 2001, whereas their application was lodged on 10 July 2003. The events complained of by the eighteenth and nineteenth applicants took place on 22 December 2001, while the application was lodged on 19 August 2004. The Court thus concludes that these applications were lodged outside the six-month limit (see *Musayeva and Others v. Russia* (dec.), no. 74239/01, 1 June 2006; *Aziyev and Aziyeva v. Russia* (dec.), no. 77626/01, 21 September 2006; and *Ruslan Umarov v. Russia* (dec.), no. 12712/02, 8 February 2007).

It follows that this part of the application was lodged out of time and must be rejected in accordance with Article 35 §§ 1 and 4 of the Convention.

In so far as the applicants complain under Article 8 of the disappearance of their relatives, the Court considers, in the light of the parties' submissions, that the complaint raises serious issues of fact and law under the Convention, the determination of which requires an examination of the merits. It concludes therefore that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 of the Convention. No other ground for declaring it inadmissible has been established.

6. The applicants complained under Article 13 of the Convention that they had had no effective remedies in respect of the alleged violations of Articles 2, 3, 5 and 8 of the Convention. Article 13 reads:

> "Everyone whose rights and freedoms as set forth in [the] Convention are violated shall have an effective remedy before a national authority notwithstanding that the violation has been committed by persons acting in an official capacity."

The Government contended that the applicants had had effective domestic remedies available to them, as required by Article 13 of the Convention, and that the Russian authorities had not prevented them from using those remedies. They stressed that the applicants could have appealed against the decisions of the investigating authorities before a court.

The applicants cited the Court's case-law on the subject and submitted that the only effective remedy in cases of enforced disappearance was a criminal investigation. As this had proved to be ineffective, the relevance of any other remedy had been undermined.

The Court considers, in the light of the parties' submissions, that the complaint raises serious issues of fact and law under the Convention, the determination of which requires an examination of the merits. It concludes

therefore that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 of the Convention. No other ground for declaring it inadmissible has been established.

7. The applicants complained that they had been discriminated against in the enjoyment of their Convention rights, contrary to Article 14 of the Convention, which reads as follows:

> "The enjoyment of the right and freedoms set forth in [the] Convention shall be secured without discrimination on any ground such as sex, race, colour, language, religion, political or other opinion, national or social origin, association with a national minority, property, birth or other status."

The applicants alleged that the violations of which they complained had taken place because of their residence in Chechnya and their ethnic background as Chechens.

The Government contended that the applicants had never been discriminated against in the enjoyment of their Convention rights on any ground.

The Court observes that no evidence has been submitted to it that suggests that the applicants were treated differently from persons in an analogous situation without objective and reasonable justification, or that they have ever raised this complaint before the domestic authorities. It thus finds that this complaint has not been substantiated. Accordingly, this part of the application is manifestly ill-founded and should be rejected in accordance with Article 35 §§ 3 and 4 of the Convention.

B. The detention of three applicants from 11 to 15 December 2002

The first, fifth and fourteenth applicants complained of inhuman treatment, unlawful detention and violation of their rights to freedom of expression and peaceful assembly under Articles 3, 5, 10 and 11 of the Convention.

The Government submitted no observations in respect of these complaints.

1. The applicants' compliance with the exhaustion requirement and with the six-month time-limit

1. The Court recalls that under that Article 35 § 1 of the Convention it can only deal with applications after the domestic remedies have been exhausted and within a period of six months after the final domestic decision has been taken. Normally, the six-month period runs from the final decision in the process of exhaustion of domestic remedies. Where it is clear from the outset however that no effective remedy is available to the applicant, the period runs from the date of the acts or measures complained of (see *D.P. and J.C. v. the United Kingdom* (dec.), no. 38719/97, 26 June

2001). The Court also observes that it cannot set aside the application of the six-month rule solely because a government has not made a preliminary objection to that effect (see *Walker v. the United Kingdom* (dec.), no. 34979/97, ECHR 2000-I, and, more recently, *Blečić v. Croatia* [GC], no. 59532/00, § 68, ECHR 2006-...). It therefore finds it necessary to examine compliance with the six-month rule in connection with the complaints made by the first, fifth and fourteenth applicants.

It first notes that the alleged violation of the rights guaranteed by Articles 10 and 11 occurred on 11 December 2002. The applicants never raised this issue before the national authorities, nor did they claim before this Court under Article 13 of the Convention that no domestic remedies had been available to them. However, even if the Court was to assume that there were no domestic remedies to exhaust in this particular case, the application was lodged on 10 July 2003, and thus outside the six-month time-limit prescribed by Article 35 § 1 of the Convention. It should accordingly be dismissed.

2. As regards the applicants' complaints under Articles 3 and 5, the Court observes that the first and fifth applicants appealed against the decisions of the Gudermes Town Court of 15 December 2002, and that their appeals and claims for damages were turned down by the Chechnya Supreme Court on 27 January 2003. The fourteenth applicant did not appeal, claiming that this avenue offered her no prospect of success and was thus not an effective domestic remedy to be exhausted. The Court is not obliged to decide whether this was so, because even if the decision of 15 December 2002 had been the last domestic decision within the meaning of Article 35 § 1, the complaint by the fourteenth applicant must be dismissed for failure to comply with the six-month limit.

The Court thus considers, taking into account the above conclusions, that only the first and third applicant have complied with the six-month time-limit prescribed by Article 35 § 1 of the Convention in respect of their complaints under Articles 3 and 5.

2. Merits of the application

1. The first and fifth applicants complained under Article 3 of the Convention that they had been subjected to inhuman and degrading treatment and punishment on account of the conditions of detention at the Gudermes ROVD from 11 to 15 December 2002. In particular, the applicants referred to the cold and the poor sanitary conditions in the cells, the absence of natural light and facilities for personal hygiene, the fact that they had been kept together with male detainees, had been denied food and water for a prolonged period of time and had not been given medical aid.

In the light of the parties' submissions, the Court finds that these complaints raise serious issues of fact and law under the Convention, the determination of which requires an examination of the merits. The Court

concludes that these complaints are not manifestly ill-founded within the meaning of Article 35 § 3 of the Convention. No other grounds for declaring them inadmissible have been established.

2. The first and fifth applicants alleged that their detention between 2 p.m. on 11 November and 10 a.m. on 15 November 2002 had not been covered by the grounds set out in Article 5 § 1, had been arbitrary and had not complied with the procedure prescribed by law. They also argued that their detention had not been duly authorised and that they had not been brought promptly before a judge, contrary to Article 5 § 3. They stressed that they had not been brought before a judge until 96 hours after their arrest, which was too long to satisfy the requirements of the Convention and the national legislation.

In the light of the parties' submissions, the Court finds that these complaints raise serious issues of fact and law under the Convention, the determination of which requires an examination of the merits. The Court concludes that these complaints are not manifestly ill-founded within the meaning of Article 35 § 3 of the Convention. No other grounds for declaring them inadmissible have been established.

For these reasons, the Court unanimously

Decides to join the applications;

Declares admissible, without prejudging the merits, the applicants' complaints under Articles 2, 3, 5, 6, 8 and 13 of the Convention in respect of their four relatives' detention and disappearance;

Declares admissible, without prejudging the merits, the first and fifth applicants' complaints under Articles 3 and 5 §§ 1 and 3;

Declares inadmissible the remainder of the applications.

Søren Nielsen
Registrar

Christos Rozakis
President